

Legal Counsel Update: September 3, 2026

9:30 a.m. - Board of Commissioners Conference Room

Attending: Commissioners Ron Smith, Colene Martin and Gary Richardson; Wally Hicks, Legal Counsel; Nikole Guzman, Recorder

Legal Counsel Update

1. Declaration of Potential Conflicts of Interest

Commissioners Richardson, Martin, and Smith each declared no potential conflicts of interest.

Chair Ron Smith called for Executive Session at 9:31 a.m. pursuant to ORS 192.660(2)(h), to consult with counsel concerning the legal rights and duties of the County regarding current litigation or litigation likely to be filed. Accredited news-media representatives were directed not to report or disclose the deliberations or statements made during Executive Session. Chair Smith stated that no final decision would be made in Executive Session and that the Board would return to Open Session before taking action.

Additional Attendees: Helene Lulich, Property Manager; Chrissy Ewald, Daily Courier; and Cliff Davidson (remote).

2. Executive Session

a. Gabbert et al v. Josephine County et al; USDC 1:23-cv-01434-CL - ORS 192.660(2)(h) - Surplus Litigation potential settlement

Executive Session concluded at 10:27 a.m.

Legal Counsel Update Continued

3. Gabbert et al v. Josephine County et al; USDC 1:23-cv-01434-CL - Surplus Litigation potential settlement

The Board reconvened in Open Session at 10:28 a.m. Chair Smith stated that the Board had received an update in Executive Session and had directed counsel regarding next steps in Gabbert et al. v. Josephine County et al. No further action was taken at that time.

4. Amendment to Resolution No. 2026-031; SEL801; Renewal of Adult Jail and Juvenile Detention Five Year Local Option Tax

Tabled. No action was taken.

5. Public Comment - US Forest Service - Proposed rule to rescind the 2001 Roadless Area Conservation Rule

Commissioner Smith discussed a draft County comment letter concerning the U.S. Forest Service proposal to rescind the 2001 Roadless Area Conservation Rule. He stated that rescission could affect access to and potential economic use of federal lands in Josephine County, including mining and other resource-related activities. County Counsel Wally Hicks had reviewed the draft and had no proposed changes. Commissioner Smith stated that he would circulate the draft to Commissioners Richardson and Martin for review before submitting the County's comments within the federal comment period. No formal vote was taken.

6. Additional Subjects/Matters from Commissioners - ORS 192.640(1)

Commissioners reported no additional matters for Board consideration.

There being no further business, the Legal Counsel Update adjourned at 10:31 a.m.